



ANNEXURE 8-3

FORM OF PARENT COMPANY GUARANTEE

Date: September 27, 2024

PARTIES:

- (1) **McDermott International, Ltd**, a company incorporated in accordance with the laws of Bermuda, whose registered or principal office is at 915 North Eldridge Parkway, Houston, Texas 77079, United States (the **"GUARANTOR"**); and
- (2) **ABU DHABI COMPANY FOR OFFSHORE PETROLEUM OPERATIONS LIMITED (ADNOC OFFSHORE)**, a company incorporated in accordance with the laws of ABU DHABI, whose registered or principal office is at P.O.Box No. 303, Abu Dhabi, United Arab Emirates (the **"COMPANY"**).

The GUARANTOR and the COMPANY will be referred to herein either individually as a **"PARTY"** or collectively as the **"PARTIES"**.

RECITALS:

- (A) By an agreement dated 31st July 2024 (the **"AGREEMENT"**) made between the COMPANY and MCDERMOTT MIDDLE EAST INC, a company organised and existing under the laws of UAE, with commercial licence no. CN-1001502 and having its registered office address at Al Aryam Tower, Block A, First Floor, Office 102, Mina Street, P.O. Box No. 105061, Abu Dhabi, UAE (the **"CONTRACTOR"**), the CONTRACTOR has agreed to execute the WORKS upon and subject to the terms and conditions contained in the AGREEMENT.
- (B) [The CONTRACTOR is a wholly owned subsidiary of the GUARANTOR].
- (C) Pursuant to Article [23.3] of the AGREEMENT, it is a condition precedent to the COMPANY's obligation to make any payment under the AGREEMENT that the CONTRACTOR delivers to the COMPANY a duly executed parent company guarantee guaranteeing all of the CONTRACTOR's delivery obligations and liabilities under the AGREEMENT in the form of this guarantee (the **"GUARANTEE"**).
- (D) The GUARANTOR has agreed, at the request of the CONTRACTOR, to guarantee to the COMPANY the due performance of the AGREEMENT by the CONTRACTOR.

Now the conditions of this GUARANTEE are as follows:

1. DEFINITIONS AND INTERPRETATION

- 1.1 Unless otherwise defined, words and expressions used in this GUARANTEE have the meanings given to them in the AGREEMENT.
- 1.2 In this GUARANTEE:
 - (a) **"OBLIGATIONS"** means all the duties, obligations, liabilities, and debts of the CONTRACTOR and all warranties, covenants and undertakings given by the CONTRACTOR and all sums due from and all claims against the CONTRACTOR (whether of a financial nature or not) under the AGREEMENT.
 - (b) **"DISSOLUTION"** means the bankruptcy, insolvency, liquidation, amalgamation, reconstruction, reorganisation, administration, administrative or other receivership, winding-up or dissolution of any person, and any equivalent or analogous proceedings in whatever jurisdiction, and any step taken (including the presentation of a petition or the passing of a resolution) for or with a view to any of the foregoing.
- 1.3 In this GUARANTEE (unless the context otherwise requires or where it is expressly stated to the contrary):
 - (a) words denoting the singular number only shall include the plural and vice versa; words denoting the masculine shall include the feminine and vice versa;



- (b) references to Articles shall be construed as references to Articles of the GENERAL TERMS AND CONDITIONS of the AGREEMENT and references to Clauses shall be construed as references to Clauses of this GUARANTEE;
- (c) headings shall be for convenience of reference only and shall not affect the interpretation hereof;
- (d) the words “include” or “including” shall be deemed to be followed by “without limitation” or “but not limited to” whether or not they are followed by such phrases or words of like import;
- (e) references to the “AGREEMENT” shall be construed as a reference to the AGREEMENT as amended, novated, modified or supplemented and in effect from time to time and shall include a reference to any document which amends, novates, modifies or supplements it, or is entered into, made or given pursuant to or in accordance with its terms;
- (f) references to dates and periods of time shall be construed in accordance with the Gregorian calendar; and
- (g) references to laws, decrees, statutes, regulations, ordinances or other public instruments shall be construed as references to the same as they may have been, or may from time to time be, amended or re-enacted or in any other way modified from time to time and all instruments, orders, plans, regulations, by-laws, permissions and directions at any time made thereunder.

2. VALIDITY

2.1 This GUARANTEE shall become effective once validly executed by both PARTIES, and shall continue to be effective until the earlier of:

- (a) the CONTRACTOR’s discharge of all of its OBLIGATIONS under the AGREEMENT in full, as evidenced by the issuance of a FINAL ACCEPTANCE CERTIFICATE by the COMPANY in respect of the WORKS; and
- (b) [Insert fixed date].¹

3. GUARANTEE AND INDEMNITY

3.1 The GUARANTOR by way of primary obligation and not by way of surety:

- (a) irrevocably and unconditionally guarantees to the COMPANY the due, punctual and complete performance and observance by the CONTRACTOR of each and all of the OBLIGATIONS which have and which may become due and performable under the AGREEMENT (including all expenses, including legal fees and taxes, incurred by the COMPANY in connection with the COMPANY seeking to enforce any of the above);
- (b) undertakes to the COMPANY, without prejudice to Clause 3.1(a), that:
 - (i) if the CONTRACTOR fails to pay to the COMPANY any sum payable by it as and when requested to do so under the AGREEMENT, and fails to remedy such failure within any applicable remedial period specified in the AGREEMENT, the GUARANTOR must pay that sum immediately to the COMPANY on first demand by the COMPANY; and
 - (ii) if the CONTRACTOR defaults in whole or in part on any of its other OBLIGATIONS and fails to remedy such default within any remedial period specified in the AGREEMENT, the GUARANTOR must, if so required by the COMPANY in writing,



¹ *ADNOC Internal Note: This field should list a specific fixed calendar date, which should be:*

- 12 months after scheduled FAC date, for projects with scheduled duration of less than 24 months;
- 24 months after scheduled FAC date, for projects with scheduled duration of 24 months or more; and
- where it is not possible or appropriate to calculate the date with reference to the above, seven months after the EFFECTIVE DATE under the AGREEMENT.

immediately remedy, or procure the remedy of such default in accordance with the AGREEMENT;

- (c) agrees to indemnify the COMPANY from and against all losses, damages, claims, costs, charges and expenses arising out of any failure by the CONTRACTOR to perform each and all of the OBLIGATIONS when and if such OBLIGATIONS become due and performable under the AGREEMENT; and
 - (d) except in relation to any expenses, legal fees and taxes referred to in Clause 3.1(a), the GUARANTOR will have no greater liability (in extent or duration) under this GUARANTEE than that of CONTRACTOR under the AGREEMENT and shall be entitled to rely upon the same defences available to the CONTRACTOR under the AGREEMENT.
- 3.2 Clause 3.1(d) shall not prejudice the operation of Clause 4.1, and the GUARANTOR shall not be entitled to avoid any liability, proceedings, claims or other action or enforcement of rights or remedies by reason of any of the events referred to in Clause 4.1.
- 3.3 Notwithstanding any other provision of this GUARANTEE, except in relation to indemnity-based claims under the AGREEMENT, the PARTIES acknowledge and agree that the GUARANTOR's liability under this GUARANTEE shall in no event exceed USD 576,289,307.80 (United States Dollars Five Hundred Seventy-Six Million Two Hundred Eighty-Nine Thousand Three Hundred Seven And Eighty Cents only).

4. PRESERVATION OF RIGHTS

- 4.1 This GUARANTEE is irrevocable and unconditional and neither the obligations of the GUARANTOR under this GUARANTEE nor the rights, powers and remedies conferred upon the COMPANY by this GUARANTEE will be discharged, impaired or otherwise affected by:
- (a) any suspension, or variation to or amendment of the AGREEMENT, or any suspension, or variation to or amendment of any WORKS required to be performed under the AGREEMENT (including any extension of time for performance and adjustment to the amount payable to the CONTRACTOR;
 - (b) the termination of the AGREEMENT;
 - (c) any release, waiver or forbearance of any right of action or remedy the COMPANY may have against the CONTRACTOR, or neglect by the COMPANY in enforcing any right of action or remedy afforded under the AGREEMENT;
 - (d) any bond, security or guarantee (other than this GUARANTEE) held or obtained by the COMPANY in respect of the obligations of the CONTRACTOR under the AGREEMENT, or any payment to the COMPANY under such bond, security or guarantee (to the extent such payment was not sufficient to fully discharge the CONTRACTOR's OBLIGATIONS);
 - (e) any of the obligations of the CONTRACTOR under the AGREEMENT being or becoming illegal, invalid, void, voidable, unenforceable or otherwise ineffective in any respect and for whatever reason;



- (f) any breach of the AGREEMENT by CONTRACTOR or the COMPANY or other default of the CONTRACTOR or the COMPANY;
 - (g) the DISSOLUTION of the CONTRACTOR or any other PERSON;
 - (h) any other act, event or omission which might operate to discharge, impair or otherwise affect any of the obligations of the GUARANTOR under this GUARANTEE or any of the rights, powers and remedies conferred upon the COMPANY by this GUARANTEE; or
 - (i) any incapacity or lack of power, authority or legal personality, or change in the status, function, control or ownership of the CONTRACTOR.
- 4.2 The COMPANY will not be obliged, before enforcing any of its rights or remedies conferred upon it by this GUARANTEE or by LAW, to:
 - (a) grant any time or indulgence to the CONTRACTOR;
 - (b) take any action in any court or arbitral proceedings or to obtain any judgment or award against the CONTRACTOR;
 - (c) make or file any claim for DISSOLUTION of the CONTRACTOR;
 - (d) make any claim against or any demand of the CONTRACTOR;
 - (e) enforce any other security held by it in respect of the OBLIGATIONS; or
 - (f) pursue or exhaust any other right or remedy against the CONTRACTOR or any other PERSON.
- 4.3 If the COMPANY brings proceedings against the CONTRACTOR, the GUARANTOR will be bound by any findings of fact, interim or final award or judgment made by an arbitrator or arbitrators or the courts in such proceedings, and (if applicable) any settlement or agreement made between the COMPANY and CONTRACTOR in writing under the dispute resolution provisions of the AGREEMENT.
- 5. NO COMPETITION**
- 5.1 Until all OBLIGATIONS and all obligations of the GUARANTOR under this GUARANTEE have been satisfied and performed in full, the GUARANTOR will not, as a result of this GUARANTEE or any payment or performance under this GUARANTEE, be subrogated to any right or security of the COMPANY or claim or prove in competition with the COMPANY against the CONTRACTOR or any other PERSON, or demand or accept repayment of any monies or claim any right of contribution, set-off or indemnity, and any sums received by the GUARANTOR in breach of this Clause 5.1 will be held by the GUARANTOR in trust for and must be promptly paid to the COMPANY.
- 5.2 The GUARANTOR will not hold any security from the CONTRACTOR in respect of this GUARANTEE and any such security which is held in breach of this Clause 5.2 must be held by the GUARANTOR in trust for and must promptly be transferred to the COMPANY.
- 6. GUARANTOR'S OBLIGATIONS**
- 6.1 The GUARANTOR'S obligations are:
 - (a) in addition to and independent of any other security which the COMPANY may at any time hold in respect of any of the CONTRACTOR's obligations under the AGREEMENT; and
 - (b) continuing and, subject to Clause 2.1(b), will remain in full force and effect until all OBLIGATIONS and all obligations of the GUARANTOR required to be performed and



observed under this GUARANTEE have been satisfied or performed in full.

Treasury Department
J. Ray McDermott, S.A.
915 N. Eldridge Pkwy.
Houston, Texas 77079
Ph: (281) 870-5000

7. PAYMENT

7.1 All sums payable by the GUARANTOR under this GUARANTEE must be paid in full without any set-off or counterclaim and free and clear of all deductions or withholdings for or on account of any present or future taxes, duties and/or other charges, other than those required by LAW. If, at any time, any LAW requires the GUARANTOR to make any deduction or withholding from a sum payable under this GUARANTEE, the GUARANTOR must gross up the payment so that the net sum received by the COMPANY will equal the full amount that the COMPANY would have received if the payment had been made without such deduction or withholding.

7.2 Any demand sent by the COMPANY to the GUARANTOR which requires the payment of money under this GUARANTEE must specify the:

- (a) amount to be paid;
- (b) currency of payment;
- (c) mode of payment; and
- (d) account to which payment is to be made.

8. ASSIGNMENT

The COMPANY may assign the benefit of this GUARANTEE or any part of it to any permitted assignee under the AGREEMENT without the consent of the GUARANTOR. The GUARANTOR may not assign its rights, title and/or interest in and to this GUARANTEE without the prior written consent of the COMPANY.

9. REINSTATEMENT

If any payment made to the COMPANY by or on behalf of the CONTRACTOR under the AGREEMENT discharges the GUARANTEE, and that payment is subsequently set aside or avoided for any reason by any competent court, tribunal or any other judicial body, then in such circumstances the GUARANTEE will be deemed to be reinstated in relation to such claim.

10. NOTICES

10.1 Any notices and other communications between the PARTIES relating to the GUARANTEE shall be sent to the following address or number:

- (a) Notices to the GUARANTOR Address: 915 N.Eldridge Parkway, Houston, TX 77079
Tel: 281-870-5000/ 281-870-5060
Attention: Treasurer
- (b) Notices to the COMPANY Address:
Address: ADNOC OFFSHORE, P.O. Box 303, Abu Dhabi, UAE
Email: abinsubaih@adnoc.ae
Attention: The Chief Executive Officer



10.2 All notices and other communications must be in writing and shall be deemed to be effected, and hence effective, at the moment of delivery to the correct address, save that a fax transmission shall be deemed to have been delivered at the time when it was dispatched if such time is prior to 4pm (GST), or the following DAY if such time is after 4pm (GST), provided that a transmission record is retained by the sender to show that the transmission was correctly completed and that all pages were transmitted.

10.3 Each PARTY may change the address referred to in Clause 10.1 by giving notice served pursuant to this Clause 10.3. The change shall take effect for the PARTY notified of the change at 4pm (GST) on the later of the date:

- (a) if any, specified in the notice as the effective date for the change; and
- (b) seven (7) DAYS after receipt of the notice of change.

11. REPRESENTATIONS AND WARRANTIES

11.1 The GUARANTOR represents, warrants and undertakes to the COMPANY that:

- (a) it has been duly incorporated, organized and/or established and is validly existing under the laws of the jurisdiction of its incorporation, organization or establishment (as the case may be);
- (b) it has all requisite corporate power and authority to enter into this GUARANTEE; and
- (c) this GUARANTEE has been duly authorized by, and upon execution will constitute a valid and legally binding instrument, enforceable against the GUARANTOR in accordance with its terms.

1.2 The GUARANTOR shall provide the COMPANY with such evidence as the COMPANY may require to confirm its compliance with the representations and warranties provided in this Clause 11.

12. GOVERNING LAW AND DISPUTE RESOLUTION

12.1 This GUARANTEE shall be governed by and construed in accordance with the laws of ABU DHABI and the applicable Federal Laws of the UAE.

12.2 Any dispute arising out of or in connection with this GUARANTEE shall be finally settled by arbitration seated in ABU DHABI in accordance with the rules of arbitration of the International Chamber of Commerce applicable at the time of conclusion of the AGREEMENT by three (3) arbitrators appointed in accordance with the ARBITRATION RULES. The arbitration shall be conducted in the English language. The arbitration award shall be final and binding upon the COMPANY and the GUARANTOR. Judgment upon the award rendered may be entered in any court having jurisdiction, or application may be made to such court for juridical recognition of the award and an order of enforcement, as the case may be.

13. MISCELLANEOUS

13.1 The GUARANTOR:

- (a) expressly and irrevocably acknowledges that the COMPANY may make demand under and in respect of this GUARANTEE even after the expiry of six (6) months from the date on which any of the payment obligations of the CONTRACTOR become due;
- (b) agrees that the provisions of Article 1092 of the UAE Civil Code (enacted under Federal Law



No. 5 of 1985, as amended) ("Article 1092") are not applicable to this GUARANTEE;
and

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- (c) waives any rights it may have under Article 1092, 1080, 1089, 1101 and 1105 of the UAE Civil Code No.5 of 1985, as amended.

13.2 This GUARANTEE may only be amended by written agreement of the PARTIES pursuant to a formal instrument titled "Amendment to GUARANTEE".

13.3 The rights and remedies of a PARTY provided for in this GUARANTEE are cumulative and not exclusive of any rights or remedies provided by LAW.

13.4 Any provision in this GUARANTEE which is illegal, void or unenforceable will be ineffective to the extent only of such illegality, voidness or unenforceability and such illegality, voidness or unenforceability will not invalidate any other provision of this GUARANTEE. If one PARTY gives notice to the other PARTY of the possibility that any provision or part-provision of this GUARANTEE is illegal, invalid or unenforceable, the PARTIES shall within fourteen (14) DAYS negotiate in good faith to amend such provision so that, as amended, it is legal, valid and enforceable, and, to the greatest extent possible, achieves the intended commercial result of the original provision.

13.5 This GUARANTEE may be executed in any number of counterparts, each of which, when executed, shall be an original, and all the counterparts together shall constitute one and the same instrument.

[Signatures on the next page]



IN WITNESS WHEREOF, this GUARANTEE has been executed by duly authorized representatives of the GUARANTOR and the COMPANY.

For and on behalf of:

McDermott International, Ltd.

By:

Name: Kevin Leader

Title: VP Treasurer

Date: 09/27/2024

For and on behalf of:

ADNOC OFFSHORE

By: _____

Name:

Title:

Date: